

decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (see Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10(a).)

First Cause of Action (Identity Theft)

The first cause of action alleges Defendant Hertz willfully obtained Plaintiff's personal identifying information and used the information to rent a car without Plaintiff's consent.

Under California's Identity Theft Act ("CITA"), a "victim of identity theft" can bring an action for damages, civil penalties, and injunctive relief "against a claimant to establish that the person is a victim of identity theft in connection with the claimant's claim against that person." (Civ. Code, § 1798.93(a).) A "claimant" is defined as "a person who has or purports to have a claim for money or an interest in property in connection with a transaction procured through identity theft." (Civ. Code, § 1798.92(a).) A "victim of identity theft" is defined as a "person who had their personal identifying information used without authorization by another to obtain credit, goods, services, money, or property, and did not use or possess the credit, goods, services, money, or property obtained by the identity theft, and has submitted a Federal Trade Commission identity theft report." (Civ. Code, § 1798.92(d).) "In the alternative, the person may have filed a police report in this regard pursuant to Section 530.5 of the Penal Code." (Civ. Code, § 1798.92(d).)

The victim may be able to recover actual damages or attorney's fees, the victim must show "they provided written notice to the claimant that a situation of identity theft might exist, including, upon written request of the claimant, a valid, signed Federal Trade Commission (FTC) identity theft report completed at least 30 days before filing the action, or within their cross-complaint pursuant to this section" or "a valid copy of a police report or of a Department of Motor Vehicles (DMV) investigative report, filed pursuant to Section 530.5 of the Penal Code, at least 30 days before filing the action or within their cross-complaint pursuant to this section." (Civ. Code, § 1798.93(c)(5).)

Here, the FAC alleges that Plaintiff is a victim of identity theft, facts showing Defendant Hertz is a claimant within the statutory definition of the term, that Defendant Hertz attempted to collect on the fraudulent charge, and that Plaintiff provided written notice to Defendant Hertz that

the situation of identity theft might exist. (See FAC ¶¶ 8, 9, 16, 18, 19, 22, 24, 29).

Second Cause of Action (Violation of Rosenthal Fair Debt Collection Practices Act)

The second cause of action alleges Defendant continuously and with such frequency contacted Plaintiff as to constitute harassment and without the proper licensure or display of the license number. (FAC ¶¶ 26, 41, 42, 43.)

The Rosenthal Fair Debt Collection Practices Act (Civ. Code § 1788, et seq.) regulates the collection of consumer debts. (See Civ. Code, §§ 1788.10-1788.185 [setting forth debt collector responsibilities].) Consumer debts are those incurred by “natural persons by reason of a consumer credit transaction” and includes a mortgage debt. (Civ. Code § 1788.2(f).) Section 1788.11 provides that “[n]o debt collector shall collect or attempt to collect a covered debt by . . . [c]ommunicating, by telephone or in person, with the debtor with such frequency as to be unreasonable, and to constitute harassment of the debtor under the circumstances.” (Civ. Code, § 1788.11(e).) The Act defines a “debt collector” as “any person who, in the ordinary course of business, regularly, on behalf of himself or herself or others, engaged in debt collection.” (Civ. Code, § 1788.2, subd. (c).) Debt collectors can include original creditors, agents of original creditors, or third-party collection agencies. (*In re Ganas* (Bankr. E.D. Cal. 2014) 513 B.R. 394, 407.)

Defendant Hertz contends it is not a debt collector as defined by the Act (Civ. Code § 1788.2(c); FAC ¶ 6) and in any case, Hertz cannot be liable for the actions of any third-party debt collection agency. (See, e.g., *Olson v. La Jolla Neurological Associates* (2022) 85 Cal.App.5th 723.)

Here, the FAC alleges sufficient facts to support a claim under the Rosenthal Act. The FAC alleges Defendant is the original creditor, attempted to collect a consumer debt from Plaintiff and in doing so, communicated with such frequency as to be unreasonable and to constitute harassment. (FAC ¶¶ 8, 22, 26, 40, 41.)

Third Cause of Action (Fraud of Theft by False Pretense)

The third cause of action alleges that Defendant received Plaintiff’s property in excess of \$950 by fraudulently charging his card and refusing or failing to correct the problem. (FAC ¶ 46.)

Penal Code Section 496(a) provides criminal liability for: “[e]very person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained.” Section 496(c) authorizes a civil action, recovery of attorney’s fees and costs, and treble damages for any person who has been injured by a violation of subdivision (a).